

provided, shall be held by him on the trusts (if any) affecting the purchase money.

Special provisions as to tenants for life, persons under disability, &c.

3.—(1) Where the vendor is a tenant for life or a person having the powers of a tenant for life under the Settled Land Acts, 1882 to 1890, the percentage shall, subject to those enactments of the said section forty-eight mentioned in the last preceding section, be retained by him as his own proper moneys for his own use and benefit, free and discharged from all claims upon the lands sold or the purchase money thereof and from any trust affecting the same.

Provided that, where the vendor is a person exercising any power of sale on behalf of a lunatic person of unsound mind or infant or where the vendor is a lunatic or person of unsound mind selling pursuant to any order made by the Lord Chancellor, the percentage shall be held for the use and benefit of the same persons or upon the same trusts, as the case may be, as if the lunatic, person of unsound mind or infant, as the case may be, were not under any disability.

45 & 46 Vict.
c. 38.

Provided also that, where the vendors are husband and wife exercising together the powers of a tenant for life under section sixty-one of the Settled Land Act, 1882, the percentage shall be retained by them jointly for their own use and benefit, free and discharged from all claims and trusts as aforesaid.

34 & 35 Vict.
c. 22.

Construction
and citation.
8 Edw. 7.
c. 37.

(2) The expression "lunatic" in this section has the same meaning as in the Lunacy Regulation (Ireland) Act, 1871.

4. This Act shall be construed as one with the Irish Land Act, 1903, and may be cited with the Land Purchase Acts, and the said Act of 1903 shall be construed and shall take effect from the date of its passing as if this Act had then formed part thereof.

Short title.

5. This Act may be cited as the Irish Land Act, 1904.

CHAPTER 35.

An Act to amend the Law relating to prisons in Scotland by abolishing the distinction between general prisons and ordinary prisons. [15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

General
prisons to
be ordinary
prisons.

1.—(1) All existing general prisons in Scotland shall be ordinary prisons within the meaning of the Prisons (Scotland) Act, 1877, and any reference in any Act to an ordinary prison shall be deemed to include a reference to an existing general prison.

(2) The words "other than the General Prison at Perth or" any prison which may hereafter be declared by Her Majesty in

" Council to be a general prison " occurring in section seventy-one of the Prisons (Scotland) Act, 1877, and the words " which prison " may be declared by Her Majesty in Council to be a general prison in terms of the provision of the said Act " occurring in section twenty-three of the Peterhead Harbour of Refuge Act, 1886, are hereby repealed.

40 & 41 Vict.
c. 53.

49 & 50 Vict.
c. 49.

2. This Act may be cited as the Prisons (Scotland) Act, 1904, and this Act and the Prisons (Scotland) Acts, 1860 to 1887, may be cited as the Prisons (Scotland) Acts, 1860 to 1904.

Short title.

CHAPTER 36.

An Act to grant Money for the purpose of certain Local Loans out of the Local Loans Fund and for other purposes relating to Local Loans. [15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) For the purpose of local loans there may be issued by the National Debt Commissioners the following sums, namely :—

Grants for
public works.

(a) For the purpose of loans by the Public Works Loan Commissioners any sum or sums not exceeding in the whole the sum of four million five hundred thousand pounds ;

(b) For the purpose of loans by the Commissioners of Public Works in Ireland any sum or sums not exceeding in the whole the sum of nine hundred thousand pounds.

(2) The sums so issued shall be issued during a period ending on the day on which a further Act granting money for the purposes of those loans comes into operation and in accordance with the provisions of the National Debt and Local Loans Act, 1887.

50 & 51 Vict.
c. 16.

2. Whereas it is expedient that the principal of the several local loans specified in the schedule to this Act should, to the extent specified in the last column of that schedule, not be reckoned as assets of the Local Loans Fund established under the National Debt and Local Loans Act, 1887 ; therefore, the principal of the said loans shall to that extent be written off from the assets of the Local Loans Fund, and the provisions of section fifteen of the said Act shall, so far as applicable, apply thereto.

Certain debts
not to be
reckoned as
assets of Local
Loans Fund.

3. If at any time there is a deficiency in the capital account of the Local Loans Fund caused by the issue of local loans stock at a discount, any securities or money standing to the credit of the separate account to which, under subsection (3) of section four of the Public Works Loans Act, 1897, excess income of the Local Loans Fund is carried may, with the consent of the Treasury, be applied in meeting the deficiency so caused, and for that purpose the National Debt Commissioners may sell any such securities.

Power to apply
excess income
of Local Loans
Fund to meet
deficiencies in
capital
account.
50 & 61 Vict.
c. 51.